

24STLC06155 24STLC06155

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F07%2F2026

Source SHA-256: 5b8574dd3ca11d7ec1d60dd2c8b22ca3f7788c080ab6078a4a30784e0721ba65

Case Number: 24STLC06155 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Alan Tyson Zorthian's Motion to Vacate Order of Dismissal is denied.

Analysis:

On August 26, 2024, Plaintiff Alan Tyson Zorthian ("Plaintiff"), in propria persona, filed the instant action for breach of contract and common counts against Defendants Matthew Angrum and Andrea Angrum ("Defendants"). Following Defendants' failure to file a responsive pleading, the Court entered their default on October 22, 2024. Default judgment was entered against Defendants on January 27, 2025. On May 28, 2025, the Court granted Defendants' Motion to Vacate the Default and Default Judgment. (Minute Order, 05/28/25.)

Plaintiff filed a Motion for Summary Judgment or Adjudication, which the Court denied on November 18, 2025. (Minute Order, 11/18/25.) Defendants filed their trial brief on January 20, 2026 and Plaintiff filed his trial brief the following day. Trial was held on January 27, 2026, at which time the issues regarding collateral estoppel were heard and argued. (Minute Order, 01/27/26.) The Court took the matter under submission and dismissed the matter without prejudice after finding that collateral estoppel applied to the case from an earlier Small Claims judgment. (Ibid.)

Plaintiff filed the instant Motion to Vacate Order of Dismissal on June 8, 2026. Defendants filed their opposition on June 22, 2026 and Plaintiff replied on June 29, 2026.

Discussion

Plaintiff moves to vacate the judgment of dismissal entered by the trial court on January 27, 2026. The Motion is brought pursuant to Code of Civil Procedure section 473, subdivisions (b) and (d).

Code of Civil Procedure section 473, subdivision (d)

Plaintiff first argues that the judgment of dismissal must be vacated as void because he had no notice that the issue of collateral estoppel would be determined at trial. The record shows, however, that Plaintiff did have notice of the issue. Collateral estoppel was listed as an affirmative defense in Defendants' Answers. (Answers, filed 11/27/24, ¶4.) The issue was raised again in Defendants' trial brief, filed on January 20, 2026, which stated that, at trial, the Court will be asked to determine "whether Plaintiff's claims are barred or limited by the prior Small Claims judgment." (Trial Brief, filed 01/20/26, § IV.) It is the first trial issue raised in the brief, and Defendants' devote a full section to it. (Id. at § II.) Additionally, Plaintiff addressed the defenses, including collateral estoppel, albeit in one sentence, in his trial brief. (Trial Brief, filed 01/21/26, § IV, ¶C.) The parties then argued the issue before the trial court. (Minute Order, 01/27/26.) Therefore, the Court finds Plaintiff had notice that the issue would be raised.

Plaintiff also argues that the trial court's ruling was made without testimony, an identified record, or a noticed, dispositive motion. (Motion, p. 8:8-26.) Plaintiff provides no authority to find that the manner in which the trial judge handled the proceedings rendered the ruling void. In reply, Plaintiff defines "void" as where the court "lacked jurisdiction over the parties, lacked subject matter jurisdiction, or lacked authority to act" and relies on the lack of notice to argue the trial judge had no authority to act. (Citing *Lee v. An* (2008) 168 Cal.App.4th 558, 563-565.) As discussed above, there is no basis to find Plaintiff lacked notice of the basis of the judgment. Therefore, the judgment of dismissal is not void or voidable.

Code of Civil

Procedure section 473, subdivision (b)

Plaintiff alternatively moves for relief from the judgment pursuant to Code of Civil Procedure section 473,

subdivision (b). Relief under this statute must be sought within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

Plaintiff does not show through his declaration that the dismissal of judgment resulted from his mistake, inadvertence, surprise, or excusable neglect. Plaintiff declares that he did not have notice that a dispositive theory would be heard at the trial call and that he believed that when the Court stated it would take the matter under submission, he would be able to file additional papers. (Motion, Zorthian Decl., ¶¶9, 11.) As discussed above, the issue of collateral estoppel was an affirmative defense timely raised by Defendants in their Answer and identified as an issue for trial in Defendants' trial brief. Plaintiff's failure to realize that the issue would be litigated at trial is therefore not excusable and not a basis to vacate the judgment. Plaintiff's unspoken expectation that he could file additional briefing after the Court took the issue under submission was not reasonable, and also not a basis to vacate judgment. (See Index of Record Exhibits, Exh. 10 ("Transcript of Proceedings") at 172-82.)

Conclusion

Plaintiff Alan Tyson Zorthian's Motion to Vacate Order of Dismissal is denied.

Judicial Assistant to give notice.